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SENT BY ELECTRONIC MAIL

April 3, 2023

DECISION

Subject: Complaint against the company (BAZARAKI) BZRK LIMITED

I refer to the complaint submitted to my Office regarding the above subject and following our correspondence which concluded with your email dated 24/1/2023, I inform you that we have examined the complaint and I present to you the following:

1. Facts / Positions of the Parties

1.1.

On 22/11/2022, a complaint was submitted by XXXXX against the company BAZARAKI BZRK LIMITED.

1.2.

The complainant stated that on 22/11/2022, the company BAZARAKI sent an email to all business clients using the CC option instead of BCC. In this way, the email addresses were visible/public to more than 200 individuals who were on this list. He added that this resulted in many of the individuals/companies included in this list starting to send promotional emails to promote their business. He added that on the company's website it is stated: "15.7 Who do we share your Personal Data with? 15.7.2. When disclosure of your Personal Data is permitted or necessary, we try to restrict the Personal Data disclosed to what is directly relevant and necessary for the accomplishment of the specified purpose. Apart from the above, we do not transfer your personal information to any other third party without your prior approval."

1.3.

The referenced email sent from the email address info@bazaraki.com has the subject "Business Category changes" and the following content:

"Dear Partners, We would like to inform you regarding the category "business" to which your account belongs, that from 01.12.2022 the following functionalities will remain available:

1. Ability to publish ads for free either manually or automatically by creating ads via XML
2. Addition of the company logo to your ads
3. Creation of a branch within Bazaraki.com
4. In the category "Other ads from the user" only your ads will be displayed
5. Immediate display of ads
6. Cash-back (regarding VIP / Top / Update services). You only pay for the period that your ad remains active and if you deactivate it, we refund part of the amount back to your wallet.

The functionalities that will not be available from 01.12.2022 are as follows:

1. Vox Number Phone Service**
2. 20% discount on TOP/VIP ads
3. Bonus

**We inform you that the VOX Number (virtual phone number) connected to your phone number that is currently active on bazaraki.com will be terminated on 30/1/2022. Your account's phone number will now be visible in the ads.

Best regards."

1.4.

In our email dated 9/1/2023, we requested to be informed regarding:

a)

The legal basis for sending the said email?

b)

The recipients of the Business category (natural or legal persons)?

c)

The process/policy for sending emails regarding the use of CC and BCC?

d)

Your positions on the complaint.

1.5.

In your email dated 24/1/2023, you stated that you act on behalf of and for the account of your clients BZRK LTD, adding that:

i.

Your Clients maintain a website and advertising platform in Cyprus named 'Bazaraki'.

ii.

On or around 22/11/2022, your Clients sent an email to a number of their customers who at that relevant time maintained a business account on the Bazaraki website in the 'Business' category to inform them about upcoming changes to services provided by Bazaraki.

iii.

The email dated 22/11/2022 was sent inadvertently using the CC option.

iv.

The use of the CC option in the said email was a bona fide mistake. Once your Clients realized the bona fide error, they took corrective measures.

v.

Specifically, on or around 23/11/2022, your Clients sent the following email using the BCC option, in which they apologized for the mistake and any disruption it caused, also urging recipients to delete the relevant email from their records:

"Dear partners,

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We would like to inform you that the previous message you received on 22.11.2022 was sent in error. Please disregard it and delete it from your records. We apologize for any inconvenience.

Sincerely,

vi. On or around the same date, your Clients resent the original email using the BCC option, in accordance with the Company's usual practice for sending emails.

vii. The Recipients are professionals who created a 'Business' account on the Bazaraki Website. The email addresses used were those that the Recipients declared as their professional email addresses during the creation of their business account on the Website.

viii. Your Clients sent the email dated 22/11/2022 for informational purposes regarding changes to the services provided to them by Bazaraki. Consequently, the processing of the Recipients' Personal Data was carried out based on Article 6(1)(b) of Regulation (EU) 2016/679 on Data Protection.

ix. The Company's usual practice regarding the sending of emails to multiple recipients is to do so using the BCC option.

x. This specific practice has been applied and was a standard practice by the employees and associates of the Company prior to the email dated 22/11/22 and was documented in the internal policy for sending messages regarding charges in the 'Real Estate' category. You have attached a relevant excerpt from this internal guideline of the Company.

xi. Following this good-faith error, the Company, in an effort to avoid similar mistakes in the future, recorded and specified this process in a new internal 'Email Sending Policy.' You have attached a copy of the policy.

xii. According to the provisions of the Policy, in all cases where an email is addressed to multiple recipients, it is sent using the BCC option, for the purpose of safeguarding the privacy of the email addresses of the recipients.

xiii. Your Clients do not send automated emails to a large number of recipients. Instead, communication of this type is handled exclusively by the Head of the relevant Department, who is selected based on strict criteria and receives explicit and detailed instructions on the operation and Policies of your Clients during their training.

xiv. According to your Clients' Email Sending Policy, the "To" option is used only when the email is addressed to a single Recipient, the "CC" option is used only for sending internal emails that will be shared with your Clients' employees, and when sending to multiple recipients, this is done using the "BCC" option, so that each recipient cannot access the email addresses of the other recipients.

xv. The list of Recipients of the said email consisted exclusively of professionals who use the services of your Clients.

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xvi.

Your Clients express their sincere apologies for any disturbance that may have been caused to the Complainant by the said incident, which constitutes a bona fide mistake.

2. Legal Basis

2.1.

According to Article 4(1) of Regulation (EU) 2016/679, "personal data": any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person.

2.2.

In Article 4(2) of Regulation (EU) 2016/679, processing is defined as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

2.3.

Furthermore, in Article 4(7) of Regulation (EU) 2016/679, the data controller is defined as "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

2.4.

Based on Article 5(1)(f) of Regulation (EU) 2016/679, personal data must be "processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures ('integrity and confidentiality')."

2.5.

Article 5(2) of Regulation (EU) 2016/679 states that "The controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ('accountability')."

2.6.

Article 6(1) of Regulation (EU) 2016/679 states that "processing shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes,
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract,

c) processing is necessary for compliance with a legal obligation to which the controller is subject,
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d) the processing is necessary for the protection of vital interests of the data subject or another natural person,

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller,

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly if the data subject is a child.

The provision in point f) of the first paragraph does not apply to processing carried out by public authorities in the performance of their tasks.

2.7.

Based on Article 24(1) (EU) 2016/679, the controller is responsible for “Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller implements appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this Regulation. These measures are reviewed and updated as necessary.”

2.8.

Article 32 of Regulation (EU) 2016/679 states that “Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk,... the controller and the processor take measures to ensure that any natural person acting under the authority of the controller or the processor who has access to personal data processes them only on instructions from the controller...”

2.9.

Article 58 of Regulation (EU) 2016/679 Powers “2. Each supervisory authority shall have all of the following corrective powers:

- a) to issue warnings to the controller or the processor that intended processing operations are likely to infringe provisions of this Regulation,
- b) to issue reprimands to the controller or the processor when processing operations have infringed provisions of this Regulation,
- c) to order the controller or the processor to comply with the requests of the data subject to exercise their rights under this Regulation,
- d) to order the controller or the processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a specified period,
- e) to order the controller to notify the personal data breach to the data subject,
- f) to impose a temporary or definitive limitation, including a ban on processing,

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ζ) to issue an order for the correction or deletion of personal data or restriction of processing pursuant to Articles 16, 17, and 18, and to issue an order for the notification of these actions to recipients to whom the personal data were disclosed pursuant to Article 17 paragraph 2 and Article 19,

η) to withdraw the certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue certification, provided that the certification requirements are not met or are no longer met,

θ) to impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

ι) to issue an order for the suspension of the circulation of data to a recipient in a third country or to an international organization.

3. Reasoning

3.1.

According to the aforementioned legal basis, the email address of a person constitutes their personal data even if it is a work email, as the email address contains the surname and/or the name of the data subject, namely the complainant.

3.2.

The present processing (sending of email) appears to have been lawful as the complainant's account was included in the Business category of the company and the email was sent to members of that category. However, the inclusion of his email address in the CC field, instead of the BCC field, resulted in his email address becoming known to the other members. The company, as the data controller, had at its disposal the technical measure of including the complainant's email address in the BCC field, which could have prevented the disclosure of his email address to ensure the security of his data from unauthorized or unlawful processing (receipt of promotional emails from other members).

3.3.

The fact that the complainant's email address was included in the Business category does not imply that the other members of this category needed to know the other members, let alone know their email addresses. The disclosure of the email address constitutes a violation of the Regulation.

3.4.

It should be noted that the company sent a new email requesting recipients to delete the previous email from their records in an attempt to correct the mistake. It also apologized for the disturbance caused.

4. Conclusion

4.1.

In light of the above, as well as the information we have before us, the following factors were taken into account when examining the complaint:

α)

The placement in the CC field, instead of BCC, of the email addresses of the recipients.

β)

Your admission that the email in question was mistakenly sent using the CC option instead of BCC.

γ)

The immediate effort to correct the mistake by sending an informative email to the recipients informing them of the error and requesting them to delete it from their records.

δ)

The taking of corrective measures after the incident to prevent similar occurrences in the future.

ε)

The existence of a legal basis for sending the email.

στ)

Your apology for the incident.

ζ)

Your immediate cooperation with the Office of the Commissioner.

η)

The absence of prior complaints.

4.2.

By evaluating the aggravating (α-β) and mitigating (γ-η) factors related to the incident and based on the powers conferred upon me by Article 58(2)(a) of Regulation (EU) 2016/679, I have decided to issue a warning to the company BZRK LTD to ensure that a similar incident does not occur in the future.

4.3.

In the event of a recurrence of a similar complaint, it will be treated more severely.

Eirini Loizidou Nicolaidou

Commissioner for the Protection of Personal Data